

23STCV06398 23STCV06398

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-09-14

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Case Number: 23STCV06398 Hearing Date: September 14, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 14, 2026

Case Name: Gomez Jr. v. MFrost, Inc., et al.

Case No.: 23STCV06398

Matter: Motion to Set Aside Default Judgment

Moving Party: Defendants Michelle and Ray Frost

Responding Party: Plaintiff Manuel Gomez, Jr.

Notice: OK

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On May 13, 2025, the Court ruled that it “will enter terminating sanctions—the Answer and Cross-Complaint of Ray Frost are stricken and his default is entered.”

On May 29, 2025, the Court ruled that it “will enter terminating sanctions—the Answer and Cross-Complaint of Michelle Frost are stricken and her default is entered.”

On January 30, 2026, the Court entered a default judgment against Ray and Michelle Frost in the amount of \$1,358,055.41.

Michelle and Ray Frost, pro per litigants, now seek to set aside their default and default judgment under CCP § 473(b). Because there is no attorney declaration of fault, the Court will determine whether the Frosts have shown entitlement to relief under the discretionary provision of CCP § 473(b).

Discretionary relief under Code Civ. Proc. § 473(b) must be sought within six months of entry of default, and mandatory relief must be sought within six months of entry of default judgment. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.) This deadline is jurisdictional (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42), and cannot be extended by Code Civ. Proc. § 1013 (see *Camper v. Workers' Comp. Appeals Bd.* (1992) 3 Cal. 4th 679, 686.)

Relief under the discretionary provision of CCP § 473(b) is simply not available because this Motion was filed on July 30, 2026—more than 6 months after the defaults in May 2025.

Therefore, the Motion to Set Aside Default/Default Judgment is denied.

Moving party to give notice.